

CTCAC Good Cause Eviction Lease Rider

Property Name: _____ Unit # _____

Household Name: _____

Dear Tenant or Applicant:

The owner(s) of this property rents residential units under the federal Low-Income Housing Tax Credit Program (LIHTC) administered by the California Tax Credit Allocation Committee (CTCAC). Under the program, the owner has agreed to rent some or all of the units in the property to low-income households and restrict the rents for those units. Another protection provided by federal law is that Low Income Tenants may not be evicted or have their tenancy terminated without good cause.

The Lease or Rental Agreement dated _____ is hereby amended by adding the following provision:

Terms

Owner may not terminate the tenancy, lease, or rental agreement of a low income tenant except for Good Cause, including a serious or repeated violation of the material terms and conditions of the Lease, or a violation of applicable Federal, State, or local law. To terminate the tenancy or the lease, the Owner must provide written notice to the Tenant of the grounds with sufficient specificity to enable the tenant to prepare a defense. The notice must be served at least three days before the termination of tenancy, and must comply with all requirements of California law and other applicable programs. Tenant has the right to enforce this requirement in state court, including presenting a defense to any tenancy termination or eviction action brought by Owner.

To the extent that any terms contained in the Lease or rental agreement, or any other agreement between the owner and the tenant, contradict the terms of this Rider, the provisions of this Rider shall control. A copy of this lease rider should be provided to the tenant/applicant.

By signing below, I indicate my understanding of the terms and consent to the provisions of this Lease Rider:

_____ Tenant/Applicant Name (print)	_____ Signature	_____ Date
_____ Tenant/Applicant Name (print)	_____ Signature	_____ Date
_____ Tenant/Applicant Name (print)	_____ Signature	_____ Date
_____ Tenant/Applicant Name (print)	_____ Signature	_____ Date
_____ Property Representative Name	_____ Signature	_____ Date